UNITED STATES BANKRUPTCY COURT
DISTRICT OF MAINE

In re: KEVIN J. MATTSON, Debtor.	Chapter 7 Case No. 24-20188 PGC

MOTION FOR REMOVAL OF CHAPTER 7 TRUSTEE, PURSUANT TO 11 U.S.C. §§ 105 AND 324, AND REQUEST FOR EXPEDITED DETERMINATION

NOW COMES Creditor, Severin M. Beliveau, Esq. ("Beliveau"), pursuant to 11 U.S.C. §§ 105 and 324(a), Federal Rules of Bankruptcy Procedure 9013 and 9014, and D. Me. LBR 9013-1, 9013-4, and 9014-1, and requests that the Court remove Chapter 7 Trustee, Edmond J. Ford, Esq. ("Trustee"), as Chapter 7 trustee in the above-captioned case of Debtor, Kevin J. Mattson ("Debtor"), and order the United States Trustee ("UST") to appoint a successor Chapter 7 trustee for the benefit of Debtor's estate and its creditors.

Under § 324(a) of the United States Bankruptcy Code ("Code"), the Court can remove a Chapter 7 trustee for "cause." The factors supporting cause are: (i) incompetence; (ii) lack of disinterestedness; (iii) conflicts of interest; (iv) exercise of poor judgment; (v) improper motivations or personal animus; (vi) breach of fiduciary duties; (vii) lack of diligence; and/or (viii) conduct generally adverse to the estate's interests.

Over the last 20 months the Trustee has managed to check all the boxes for removal. And, objectively, it is not close. The Trustee should be immediately removed for the benefit of the estate and its creditors.

For the reasons set forth herein, this Motion also includes a request for expedited determination in accordance with D. Me. LBR 9013-4(a)(2)(B).

In support of his Motion, Beliveau states as follows.

I. Constitutional Authority, Jurisdiction, and Venue

1. The Court has constitutional authority to enter final orders on this Motion, it has jurisdiction over this case pursuant to 28 U.S.C. § 1334, this is a statutorily core matter pursuant to 28 U.S.C. § 157(b)(2)(A) and (O), and venue is proper pursuant to 28 U.S.C. § 1409(a).

II. Facts

2. On September 12, 2024 ("Filing Date"), multiple petitioning creditors, including Beliveau, commenced this bankruptcy case against Debtor through the filing of a Chapter 7 Involuntary Petition Against an Individual (D.E. 1).

3. On October 10, 2024, the Court issued its Order for Relief in an Involuntary Case ("Order for Relief") (D.E. 10).

4. On October 23, 2024, the Court issued its Order (D.E. 30) granting Debtor's Motion to Convert Case from Chapter 7 to Chapter 11 (D.E. 13).

5. On February 11, 2025, the Court issued its Order re-converting Debtor's case to one under Chapter 7 of the Code (D.E. 80).

6. On February 14, 2025, the Trustee was appointed successor Chapter 7 trustee (D.E. 88).

7. On February 18, 2025, Marcus Clegg Bals & Rosenthal ("Marcus Clegg") entered its appearance on behalf of Debtor (D.E. 92).

8. On February 25, 2025, Debtor signed and filed Amended Schedules under penalties of perjury (D.E. 94). Marcus Clegg filed the Amended Schedules as Debtor's counsel.

9. On May 5, 2025, an unsecured creditor in Debtor's case, Montresor LLC ("Montresor"), commenced an Adversary Proceeding against Debtor seeking the denial of his discharge under § 727(a) of the Code. See Montresor LLC v. Kevin J. Mattson, Adv. Proc. No. 2025-2006 ("727 Proceeding").

10. Beliveau is a member of the limited liability company, Montresor.

11. From May to December 2025, Montresor conducted a substantial amount of discovery in the 727 Proceeding, including the service of subpoenas for documents and records upon numerous banks, lenders, businesses, and the accounting firm where Debtor (and his other 5 companies that filed Chapter 11 cases in 2024) had accounts or otherwise did business prepetition. That discovery process generated tens of thousands of pages of documents, bank statements, and other financial records.

12. On August 7, 2025, the Trustee commenced the Adversary Proceeding entitled, Edmond J. Ford, Trustee v. Terence Conklin, et al., Adv. Proc. No. 25-2009 ("Tax Credit Proceeding"), against Marcus Clegg, Seton Unit 4, LLC ("Seton 4"), and Terence J. Conklin ("Conklin"). In his Complaint, the Trustee alleged three claims: (1) avoidance of a pledge from Debtor to Conklin under § 547 of the Code; (2) avoidance of a grant of a security interest from Debtor to Conklin in the Tax Credit (as defined in the Complaint/never-to-date scheduled by Debtor/discussed ad nauseum in this case) under § 544 of the Code; and (3) a declaratory judgment that the Tax Credit was property of the estate under § 541 of the Code (against Seton 4 and Marcus Clegg).

13. On December 3, 2025, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("First Application to Compromise") (D.E. 178) seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, and Conklin relating to Debtor's case and the Tax Credit Proceeding.

14. On December 8, 2025, Montresor filed an Objection to the Proof of Claim of Conklin (Claim No. 33) (D.E. 182).

15. On December 12, 2025, Marcus Clegg filed a Motion to Withdraw as counsel for Debtor (D.E. 183).

16. On December 16, 2025, the Court issued its Order (D.E. 190) approving Marcus Clegg's request (D.E. 183) to withdraw.

17. On December 16, 2025, Debtor, then acting pro se, filed a Stipulation to Waiver of Discharge ("Waiver") (D.E. 191) in his case.

18. On December 17, 2025, the Court issued its Discharge Order in accordance with § 727(a)(10) and Debtor's Waiver. The issuance of the Discharge Order constituted a denial of Debtor's discharge under § 727(a)(10) as of that date. See Order, dated April 24, 2026 (D.E. 310). It also ended Montresor's 727 Proceeding (as moot).

19. On December 26, 2025, Montresor filed its First Objection (D.E. 201) to the Trustee's First Application to Compromise. In its First Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Marcus Clegg, Seton 4, and Conklin regarding the Tax Credit Proceeding was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the factors under Jeffrey v. Desmond.

20. On January 19, 2026, the Trustee filed a 287-page Reply memorandum with exhibits in response to Montresor's First Objection and supporting the Trustee's First Application to Compromise (D.E. 211).

21. On January 31, 2026, the Trustee filed another Supplemental Memorandum in response to Montresor's First Objection and supporting of the Trustee's First Application to Compromise (D.E. 219).

22. On February 4, 2026, the Trustee filed a Motion for Steven M. Notinger, Esq. to appear pro hac vice in this case on the Trustee's behalf (D.E. 221). The Court granted that Motion the same day (D.E. 222).

23. On February 6, 2026, the Trustee filed yet another supplemental document in response to Montresor's First Objection and supporting the Trustee's First Application to Compromise (D.E. 225).

24. On February 19, 2026 – despite not being a party to the contested matter between Montresor and Conklin – the Trustee filed an Application to Compromise Montresor's Objection to Conklin's Proof of Claim (D.E. 230), purportedly under Federal Rule of Bankruptcy Procedure 9019.

25. On February 25, 2026, the Court conducted a hearing on the Trustee's First Application to Compromise and Montresor's Objection thereto. At the conclusion of that

hearing, the Court denied the Trustee's First Application to Compromise for many of the reasons set forth in Montresor's First Objection and because the proposed settlement was an abuse of the Trustee's discretion. See Minute Order (D.E. 235).

26. On March 7, 2026, Montresor filed its Objection to the Trustee's Application to Compromise Montresor's Objection to Conklin's Claim (D.E. 236).

27. On March 16, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Second Application to Compromise") (D.E. 241) again seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, Conklin, and Geoff Houghton ("Houghton") in relation to Debtor's case, the Tax Credit Proceeding, and claimed avoidance claims against Houghton.

28. Also on March 16, 2026, Beliveau caused Debtor to be served with a Disclosure Subpoena 14 M.R.S. § 3122 for the purpose of ascertaining, in Maine District Court ("District Court"), Debtor's ability to pay Beliveau's Judgment against him. See also 14 M.R.S. § 3120 – 3138.

29. On March 31, 2026, the Court conducted a hearing on Montresor's Objection to Conklin's Claim and set it for an evidentiary hearing.

30. On April 6, 2026, Montresor filed its Second Objection (D.E. 263) to the Trustee's Second Application to Compromise. In its Second Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Marcus Clegg, Seton 4, Conklin, and Houghton was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the Jeffrey v. Desmond factors.

31. On April 10, 2026, the Trustee filed an Application to Employ (D.E. 278) his firm, Ford, McDonald & Borden, P.A. ("FMB"), as counsel to the Trustee pursuant to § 327 of the Code. The Court granted that Application to Employ – without hearing – on April 13, 2026 (D.E. 286).

32. On April 10, 2026, the Trustee filed his Reply in support of his Second Application to Compromise, along with a Declaration under penalty of perjury executed by Debtor supporting the Trustee's Second Application to Compromise (D.E. 280).

33. On April 15, 2026, the Court conducted a hearing on the Trustee's Second Application to Compromise and Montresor's Second Objection thereto. At the conclusion of that hearing, the Court denied the Trustee's Second Application to Compromise for many of the reasons set forth in Montresor's Second Objection and because the proposed settlement was an abuse of the Trustee's discretion. See Minute Order (D.E. 290).

34. On April 18, 2026, the Trustee strangely filed a Motion to Approve Form of Notice of Compromise (D.E. 298) on the same terms advanced in his Second Application to Compromise. The next day, April 19, he withdrew it (D.E. 301).

35. On April 20, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Third Application to Compromise") (D.E. 302) once again seeking the Court's approval of a Settlement Agreement among the Trustee, Houghton, and indirectly Debtor relating to alleged avoidance claims against Houghton.

36. On April 22, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Fourth Application to Compromise") (D.E. 306) again seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, and Conklin in relation to Debtor's case and the Tax Credit Proceeding.

37. On May 12, 2026, Montresor filed its Third Objection (D.E. 327) to the Trustee's Third Application to Compromise. In its Third Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Houghton, and involving Debtor was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the Jeffrey v. Desmond factors.

38. On May 13, 2026, Montresor filed its Fourth Objection (D.E. 330) to the Trustee's Fourth Application to Compromise. In its Fourth Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Marcus Clegg, Debtor, and Conklin was

an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the Jeffrey v. Desmond factors.

39. On May 17, 2026, Beliveau and Montresor filed a Motion to Compel Abandonment (D.E. 332) of the state law claims against Beliveau and undersigned counsel scheduled by Debtor on his Amended Schedule A/B ¶ 33 as follows: "Claim against Severin Beliveau for breach of contract and fraud" and "Claim against Randy Creswell for slander."

40. In their Motion to Compel Abandonment, Montresor and Beliveau indicated that Debtor testified under oath at his § 341 Meeting of Creditors on March 11, 2025 – conducted by the Trustee over 14 months earlier – that the basis for the scheduled fraud and breach of contract claims against Beliveau and his counsel related to the transactions involving Harpers Development, LLC ("Harpers Development"), the sale of the assets of Central Maine Commerce Center, LLP ("CMCC"), and Beliveau's purported improper receipt of funds in those transactions.

41. On May 27, 2026, the Trustee filed a "Position Statement" regarding Montresor's Objection to Conklin's Claim (D.E. 333). In his Position Statement (p.1) concerning the contested matter in which he was not a party, the Trustee stated: "Until there are assets to be distributed to unsecured claims, the Claim Objection is inappropriate. The Trustee is directed by the statute to object to claims only 'if a purpose would be served.' 11 U.S.C. § 704(a)(5). No purpose is served objecting to the Conklin Claim where there is, as yet, no realistic likelihood of a distribution."

42. The Trustee's Position Statement goes on to represent Conklin's interests and present his defenses for him to Montresor's Objection to the Claim – in the contested matter that the Trustee was not a part of, did not need to be part of, and that he opted to insert himself into anyway on Conklin's behalf. See Position Paper, pp. 2 – 8.

43. On May 29, 2026, the Trustee filed his Objection (D.E. 337) to Montresor's and Beliveau's Motion to Compel Abandonment.

44. In his Objection to the Motion to Compel Abandonment, the Trustee indicated that the claims against Beliveau in his "Draft Complaint" potentially had value "in excess of $150,000." See Objection, p. 3.

45. In his Opposition, the Trustee also wanted to make it clear (in his view anyway) that he had until October 9, 2026 to bring any claims against Beliveau and undersigned counsel, stating: "Delay to allow the Trustee to evaluate claims in the ordinary course will impose no hardship or cost on [Beliveau and Montresor – both creditors and parties-in-interest in the case] and will allow the Trustee the time to adequately investigate the claims." Id. ¶ 1.

46. On June 1, 2026, Montresor and Conklin filed a Joint Motion to Approve Stipulation regarding Montresor's Objection to Conklin's Claim (D.E. 339). Montresor and Conklin had reached agreement to resolve their contested matter before the Trustee filed his Position Paper, but he did not know that at the time (because he was not part of the contested matter and neither Montresor nor Conklin needed to tell him that they had settled).

F. Beliveau Does not Request Any Relief under 11 U.S.C. § 324(b)

47. Notwithstanding § 324(b)'s requirement that removed trustees be removed from all other cases in which they are serving, Beliveau does not seek that relief upon the Trustee's removal in this case under § 324(a). Beliveau leaves it to the Court and the UST to decide whether the Trustee, given his conduct in this case, is fit to serve as a trustee in other cases.

IV. Request for Expedited Determination

48. Beliveau seeks expedited determination of this Motion because the Court, sua sponte, scheduled a hearing on the Trustee's Application to Employ R&B for October 6, 2026 at 9:00 a.m.

49. Beliveau will be filing an Objection to that Application to Employ in advance of the scheduled hearing. He will also be filing an Objection to the Trustee's Motion for Attorney Braunstein to appear pro hac vice within the 14 days provided for in the Court's approval Order.

50. Beliveau submits that determination of this Motion for Removal should be heard in advance of the Application to Employ R&B, because if cause exists to remove the Trustee under § 324(a), then the successor trustee should have the ability and opportunity to determine whether retention of R&B is in the best interests of the estate, or not.

51. For these reasons, Beliveau submits that this Motion should be considered on an expedited basis on October 6, 2026 at 9:00 a.m.

V. Conclusion

52. The Trustee's handling of this case has been a study of consistently, impossibly-poor judgment, incompetently executed, over substantive legal matters of which the Trustee has only the barest and superficial understanding. The "administration" of this case has been a debacle.

53. The Trustee has not administered anything in almost two years. Now the "claims" he does want to "administer" are completely made up, nowhere supported by Debtor's Amended Schedules, and directly contrary to the same claims he was cajoling people with a few months ago. And because he has bungled every aspect of the case, he has breached multiple fiduciary duties owed to creditors of the estate, he has engaged in multiple instances of negligence, and he has created exposure for himself, his firm, and the estate in the form of malpractice claims and otherwise.

54. Worse than all that, though, is that his animating motivation in pursuing the current R&B Proceeding is purely retaliation against Beliveau for his perceived role in challenging the Trustee's "authority" and of preventing the Trustee's many efforts to give away estate assets for no consideration for the direct benefit of Debtor and Marcus Clegg, all of which was rightfully rejected by the Court. And because the Trustee and Debtor now share a common disdain for Beliveau and his counsel, they are now coordinating to inflict as much financial and other harm on him as possible, which, in turn, has deprived of the Trustee of his once "disinterested" status.

55. Finally, the Trustee intentionally and knowingly opted for stealth and secret over transparency and objective assessment vis-à-vis the Court and parties-in-interest. He could have sought the Court's approval to retain R&B well before the firm commenced work on its bloated, internally inconsistent, and nonsensical Complaint, but instead, knowing that that that approach was likely to be met with substantial skepticism from the Court given the circumstances, he intentionally chose to expose the estate to a substantial benefit administrative expense claim, put all fees of R&B at risk, and ask the Court for its rubber-stamp approval of retention, but only after-the-fact.

56. It is difficult to understand how the Trustee has been entrusted with the role of a fiduciary, an individual required and expected to exercise good, sound, and knowledgeable judgment for the benefit of constituents. That is not who the Trustee is, or what he is capable of. Under the totality of the circumstances, cause exists for the removal of the Trustee under § 324(a) of the Code.

WHEREFORE, Severin M. Beliveau, Esq., requests that this Court: (i) remove Chapter 7 Trustee, Edmond J. Ford, Esq., as Chapter 7 trustee in the above-captioned case of Debtor, Kevin J. Mattson, and order the United States Trustee to appoint a successor Chapter 7 trustee for the benefit of Debtor's estate and its creditors; (ii) authorize, in the event that the Motion is not granted, the conduct of discovery on all issues relevant to this Motion and contested matter; (iii) schedule an expedited hearing on this Motion for October 6, 2026 at 9:00 a.m.; and (iv) grant him such other and further relief as is just and appropriate under the circumstances.

Dated: September 29, 2026

/s/ Randy J. Creswell
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CERTIFICATE OF SERVICE

I, Randy J. Creswell, hereby certify that I served on this day copies of the above Motion, proposed Order, and Certificate of Service upon each of the parties listed on the Notice of Electronic Filing via the Court's Administrative Procedures Governing the Filing and Service by Electronic Means (unless otherwise indicated below).

Dated: September 29, 2026

/s/ Randy J. Creswell
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